

26STCV14262 26STCV14262

County: los-angeles

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Case Number: 26STCV14262 Hearing Date: September 21, 2026 Dept: 406

HILCE LLAMAS,

Plaintiff,

v.

JOEY RESTAURANTS LOS ANGELES INC., et

al.,

Defendants.

Case No.: 26STCV14262

Hearing Date: September 21, 2026

[TENTATIVE]

order RE:

defendant joey restaurant los angeles

inc.'s demurrer and motion to strike

BACKGROUND

On May 4, 2026, Plaintiff Hilce

Llamas filed this action for negligence and premises liability. The complaint stems from injuries Plaintiff sustained while she was a patron at the restaurant, Joey DTLA. Specifically, Plaintiff was struck in the eye by glass shards when a waiter dropped a glass cup.

On August 19, 2026, Joey Restaurant
Los Angeles filed the instant demurrer and motion to strike. Plaintiff filed an
opposition on September 8, 2026. Defendant filed a reply on September 14, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether
the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When
considering demurrers, courts read the allegations liberally and in
context. (Taylor v. City of Los
Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.)
In a demurrer proceeding, the defects must be apparent on the face of the
pleading or by proper judicial notice. (Code Civ. Proc., § 430.30, subd.
(a).) A demurrer tests the pleadings alone and not the evidence or other
extrinsic matters. (SKF Farms v. Superior
Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the
defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a
demurrer hearing is whether the complaint, as it stands, unconnected with
extraneous matters, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Any party, within the time allowed to
respond to a pleading, may serve and file a notice of motion to strike the
whole or any part of that pleading. (Code Civ. Proc., § 435, subd. (b).) The
court may, upon a motion, or at any time in its discretion, and upon terms it
deems proper, strike (1) any irrelevant, false, or improper matter inserted in
any pleading and (2) all or any part of any pleading not drawn or filed in
conformity with the laws of this state, a court rule, or an order of the court.
(Id., § 436.) The grounds for moving to strike must appear on the face
of the pleading or by way of judicial notice. (Id., § 437.)

MEET AND CONFER

Before filing a demurrer or a motion to
strike, the demurring or moving party is required to meet and confer with the
party who filed the pleading demurred to or the pleading that is subject to the
motion to strike for the purposes of determining whether an agreement can be
reached through a filing of an amended pleading that would resolve the
objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.)
The Court finds that Defendant has satisfied the meet and confer requirement.

(See Argoud Decl.)

DISCUSSION

I.

Premises Liability

a. Sufficient Facts

“California law requires landowners to maintain land in their possession and control in a reasonably safe condition.” (Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 674.) “The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages.” (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) “Ordinarily, negligence may be pleaded in general terms and the plaintiff need not specify the precise act or omission alleged to constitute the breach of duty.” (Lopez v. Southern Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795.)

Here, the complaint alleges that “the premises, glass cup, serving/bussing equipment, pathways of travel, flooring, seating arrangement, service routes, and lighting, were in a dangerous, defective, and/or unsafe condition.” The complaint further alleges that “[t]hese unsafe conditions, jointly and individually, created an unreasonable risk of harm to patrons, including Plaintiff, and contributed to the subject incident.” Lastly, the complaint alleges that “Defendants knew or should have known that the dangerous, defective, and unsafe conditions as described herein, including the risk associated with the handling and transportation of glassware in customer areas, yet failed to take reasonable steps to correct, remedy, guard against, or warn of such conditions.”

These allegations sufficiently describe premises liability. The complaint establishes that the condition of the premises—unsafe pathways, floors, lighting, etc.—was hazardous, especially in relation to the risk of handling glassware. This allegedly led to the incident where a waiter dropped a glass cup, sending glass shards into Plaintiff’s eye. This is adequate under the general pleading standard for negligence.

The demurrer demands evidentiary

detail not required for pleading: “the Complaint contains no factual allegations identifying which of these conditions was allegedly dangerous, how any such condition was defective, how Defendants contributed to these defects, and how the alleged defect contributed to Plaintiff’s injuries.” (Dem. 6:9-12.) The existing allegations sufficiently apprise Defendant of the nature of the claim.

b. Uncertainty

A demurrer for uncertainty is disfavored and is only granted “if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.) A complaint does not need to be a “model of clarity” to survive a demurrer because most ambiguities can be clarified through discovery. (Ibid.)

For the reasons discussed above, the complaint is not uncertain. Defendant argues that the complaint is uncertain because it “generally refers to Defendants as a single group throughout the Complaint, making it impossible for Defendants to distinguish why and in what capacity they are being sued.” (Dem. 7:9-10.) However, Defendant cites no authority precluding a plaintiff from referring to all defendants collectively in a pleading. All of the defendants allegedly “owned, leased, occupied, operated, managed, maintained, repaired, modified, and/or controlled the premises.” This allegation must be assumed true on a demurrer and sufficiently apprises Defendants of the asserted basis for liability. The precise relationship of each defendant to the subject premises, and the precise degree of its responsibility for Plaintiff’s injuries, are factual questions to be answered on the evidence, not on the pleadings.

c. Duplicative

“[M]odern rules of pleading generally permit plaintiffs to ‘set forth alternative theories in varied and inconsistent counts.’” (Klein v. Chevron U.S.A., Inc. (2012) 202 Cal.App.4th 1342, 1388.) A claim is duplicative if it “adds nothing to the complaint by way of fact or theory.” (Award Metals, Inc. v. Superior Court (1991) 228 Cal.App.3d 1128, 1135.)

Defendant argues that the premises

liability claim is duplicative of the negligence claim. However, the two counts raise distinct theories of liability even if they are based on the same facts. The premises liability claim pertains to the alleged dangerous condition of the premises, while the negligence claim separately asserts negligent handling of the glass and negligent hiring. Plaintiff is entitled to assert these theories in separate counts, even if they are both theories of negligence.

d. Additional Entities

Defendant argues that the complaint fails to assert a basis for liability against Earls Restaurant USA Inc. and Joey Cucina Restaurants. However, these other defendants are not involved in the instant demurrer, and Defendant articulates no basis for its standing to assert arguments on their behalf.

Moreover, as discussed above, the complaint alleges that each defendant “owned, leased, occupied, operated, managed, maintained, repaired, modified, and/or controlled the premises.” This is an allegation of ultimate fact which must be assumed true on a demurrer.

II.

Motion to Strike

Defendant moves to strike all references to “JOEY DTLA” as a separate defendant because Joey DTLA is merely Defendant’s fictitious name, not a separate entity subject to a lawsuit. However, the references to Joey DTLA are proper because that is the name of the restaurant where the incident occurred. Defendant fails to identify the “irrelevant, false, or improper matter” to be stricken. (See Code Civ. Proc., § 436.)

CONCLUSION

Defendant Joey Restaurant Los Angeles Inc.’s demurrer is OVERRULED. The motion to strike is DENIED.